

File No.: EXP202308041

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 13, 2023, and based on the following

FACTS

FIRST: On November 13, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202308041, in which it was agreed to uphold the claim for the exercise of rights made by the appellant against FUNDACIÓN SPÍNOLA (hereinafter the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on December 1, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which, in summary, it states that the requested right has not been addressed.

FOURTH: On January 4, 2024, the respondent was informed of the appeal filed by the claimant now appellant, in case they wish to submit allegations. And, on January 8, 2024, a reminder for compliance with the resolution was also sent, as the response provided for this purpose, submitted by the claimant along with the appeal, maintains the same arguments deemed insufficient in the resolution.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Conclusion

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The resolution that is the subject of this appeal was resolved favorably with the following argument:

“...We will begin by stating that this resolution will address solely and exclusively whether the rights of access, rectification, and deletion have been attended to. The rest of the issues raised by the claimant, the possible security breaches of the respondent or, the conscious or unconscious negligence regarding the dissemination of the personal and medical data of the minor, pointed out by the claimant, this Agency reserves the right to conduct an investigation if deemed appropriate outside of this resolution, in which case, it would inform the parties in due course.

That said, we will begin by discussing the right of access and accepting the respondent's response that the requested recording does not exist, and since the claimant has been informed of what occurred, we consider this matter addressed.

However, the same does not apply to the right of rectification/deletion. The claimant is not requesting the deletion of a report but the rectification or deletion of an erroneous piece of data, the medical diagnosis that the center assigns to the minor in its reports. The claimant provides medical documentation regarding the request.

The respondent has not addressed this request since, in its allegations, it states that it cannot delete a report, but the issue is not the deletion/rectification of the diagnosis with which the minor appears in its reports (the cause of the claim), therefore, this claim is upheld for formal reasons regarding the right of access for having been answered in an untimely manner, and it is upheld regarding the right of

rectification/deletion...”

That is to say, using the reconsideration appeal to highlight that the provisions of the resolution have not been complied with, not with the aim of demonstrating that it was not in accordance with the law. Therefore, and given that, as stated, the filing of the appeal is not based on the concurrence of any of the grounds for nullity or annulment provided for in Articles 47 and 48 of the LPACAP, it is necessary to proceed to agree to its dismissal, without prejudice to the inspection and corrective powers held by this Agency.

III

Untimely Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

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Nevertheless, and despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all proceedings, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having considered the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on November 13, 2023, in file EXP202308041.

SECOND: TO NOTIFY this resolution to A.A.A. and to FUNDACIÓN SPÍNOLA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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